Australian Government

Australian Fisheries Management Authority

DIRECTION NOT TO ENGAGE IN FISHING

Fisheries Management Act 1991
Subsections 41A(2)

SOUTHERN AND EASTERN SCALEFISH AND SHARK FISHERY (Closures) DIRECTION No. 2 2012

I, **JAMES FINDLAY**, Chief Executive Officer of the Australian Fisheries Management Authority, as delegate under delegation No. 1 of 2011 made on 28th January 2011 from the Commission, make the following Direction under section 41A(2) of the *Fisheries Management Act 1991*.

Dated: 27 February 2012

James Findlay
Chief Executive Officer
Australian Fisheries Management Authority

Citation

1. This Direction may be cited as the *Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No.2 2012*.

Commencement

2. This Direction commences seven days after it is registered on the Federal Register of Legislative Instruments.

Cessation

3. This Direction ceases on 10 August 2013, unless earlier revoked.

To Whom This Direction Applies

4. This Direction applies to a holder, in the Southern and Eastern Scalefish and Shark Fishery, of:

(a) a Gillnet Boat Statutory Fishing Right; and/or

(b) a South Australian Coastal Waters Permit

and to a person acting on behalf of the holder.

[**Note**: This means that the Direction does not apply to a person if the person is fishing in the area of the Fishery in accordance with a fishing concession that is subject to another plan of management in force under the Act, under a scientific permit, a permit issued in another fishery, or under a licence issued under a law of a State or Territory.]

Interpretation

5. A term used in this Direction that is defined in the *Southern and Eastern Scalefish and Shark Fishery Management Plan 2003* (the Management Plan) has the same meaning in this Direction as it has in the Management Plan.

Direction Not to Engage in Fishing

6. Fishing by gillnet methods is not to be engaged in the areas of waters of the Southern and Eastern Scalefish and Shark Fishery described in Schedule 1.

Interaction with other legislative instruments

7. For the avoidance of doubt:

This Direction does not affect any other Direction made under s41A of the *Fisheries Management Act 1991* (the Management Act), or, prior to the commencement of the *Fisheries Legislation Amendment Act (No. 2) 2010*, under former section 17(5A) of the Management Act and section 56 of the Management Plan, which directions continue in force according to their terms.

Schedule 1

Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No.2 2012.

Fishing by gillnet methods is not to be engaged in the following area:

Australian Sea Lion Management Strategy Adaptive Management Zone B

The area of the Australian Sea Lion Management Strategy Adaptive Management Zone B is the part of the Australian Fishing Zone and coastal waters of the State of South Australia contained within and bounded by a line:

a) commencing at the intersection of the mean low water line of the southern coastline of South Australia and 131º 30’ 00” east , then south to the intersection of 33° 26' 42" south and 131º 30’ 00”;

b) then generally south-easterly along the geodesics sequentially connecting the following points;

Point	Latitude	Longitude
i.	33º 31' 46” south	131º 47' 44” east
ii.	33º 51' 31” south	132º 19' 50” east
iii.	34º 00' 00” south	132º 30' 00” east

c) then generally north-easterly to the intersection of 133°50' 55” and the low water mark of the South Australian coast;

d) then generally west along the mean low water line of the southern coastline of South Australia to the point of commencement.